ALLERGY RESEARCH GROUP LLC MINIMUM ADVERTISED PRICE POLICY
Effective Date: June 1, 2021

I. Purpose

Allergy Research Group LLC ("ARG") has determined that certain advertising practices undermine ARG's reputation, brand, goodwill, and premium image with its target consumer population and discourage its sellers from investing in the Allergy Research Group®, NutriCology®, and Optimox® brands and product lines and providing the best possible service and support to consumers. To protect the integrity of the ARG brands, ARG has adopted this unilateral Minimum Advertised Price Policy (the "Policy"), which applies to all authorized resellers of Allergy Research Group®, NutriCology®, and Optimox® branded products in the United States of America. This Policy supersedes all prior ARG policies or representations regarding minimum advertised prices or resale prices for the ARG products applicable to resellers.

II. Products Subject to MAP Policy

This Policy applies to advertisements of all of the ARG, NutriCology, and Optimox products set forth on the following URLs (collectively, the "Covered Products"), available at:

- **NutriCology:** https://www.nutricology.com/index.php?p=a_z
- **Allergy Research Group:** https://www.allergyresearchgroup.com/index.php?p=a_z
- **Optimox:** https://www.optimox.com/shop/

These product schedules will be made available to all resellers and may be amended by ARG in its sole discretion at any time. This MAP Policy is also available online, for reference at:

- https://www.allergyresearchgroup.com/map-policy;
- https://www.nutricology.com/map-policy; and
- https://www.optimox.com/map-policy

III. The Minimum Advertised Price

ARG is solely responsible for establishing the minimum advertised price ("MAP") for each Covered Product and communicating the MAP to all resellers. The MAP for each Covered Product is equal to the manufacturer's suggested retail price (MSRP) for that Covered Product, as set forth at:

- **NutriCology:** https://www.nutricology.com/index.php?p=a_z
- **Allergy Research Group:** https://www.allergyresearchgroup.com/index.php?p=a_z
- **Optimox:** https://www.optimox.com/shop/

While resellers remain free to advertise and sell all ARG products (including the Covered Products) at any price, it is a violation of this Policy for a reseller to advertise any Covered Product at a price lower than the MAP. This Policy does not constitute an agreement between ARG and any other entity. ARG does not solicit and will not accept any assurance of compliance with this Policy from any reseller or other party. Each reseller must choose independently whether to comply with the terms of this Policy. **This Policy is not negotiable and will not be altered for any individual reseller.**

IV. Advertising and Advertisements

The Policy applies to all "advertising" and "advertisements" and includes all promotional or pricing information of Covered Products displayed in any type of media, including, but not limited to:

- newspapers
- catalogs
- magazines
- flyers
- brochures
- television
- radio ads
- websites
- blogs
- social media
- affiliate marketing networks/comparison shopping engines
- mobile/smart phone applications
- banner ads
- online product ads
- paid search ads
- pay-per-click ads
- display ads
- sponsored links
- ads in any other media in a digital format that is conveyed via the Internet
- any other marketing or promotional materials,

- billboards
- outdoor signage
- seller-initiated text messages or emails to customers or prospective customers
- mobile ads
- product listing ads

whether displayed online, through broadcast, or other media

The terms "advertise" and "advertisement" do not include:

A. signage displayed within a brick-and-mortar selling location; and

B. pricing information displayed at the "final online checkout stage," which is when the Covered Product is put into a shopping cart that contains the customer's name, shipping address, email address, and payment information of a transaction. Pricing information in the "shopping cart" or "checkout" stages must be obscured technically so that it is not retrievable by shopping and pricing engines and not displayed on search page results within the reseller's own website.

V. Policy Violations and Permissible Promotions

MAP advertisements that violate this Policy include, but are not limited to:

A. Offering coupons, discounts, rebates, or other inducements that, when applied, result in a price lower than the MAP, including through use of a storewide sale, a category-wide sale, a promotional code, or other similar provision that can be applied to the Covered Products;

B. Bundling Covered Products with other products or services (whether made by or provided by ARG or another entity) in a manner that implies below-MAP pricing for the bundled Covered Product;

C. Strikeouts or strikethroughs of pricing information, "see price in cart," or other statements that suggest a lower price for a Covered Product may be found at the "final online checkout stage" (as defined above);

D. Permitting any third-party to alter the advertised price for any Covered Product; and

E. Direct or indirect attempts to circumvent this Policy.

Until otherwise announced by ARG, advertisements that do not violate this Policy include:

A. The advertisement of free or reduced-price shipping on a Covered Product, as long as such offer applies to all other products offered by a reseller in the same product category and the value of the free or reduced-price shipping is reasonable;

B. A coupon, coupon code, reseller rebate, or similar inducement that can be applied to a Covered Product, provided that such coupon, coupon code, reseller rebate, or other inducement: (1) applies to all products offered by reseller or all products offered by reseller in the same category as the Covered Product; (2) does not specifically refer to any Covered Product; and (3) does not provide a discount of more than twenty percent (20%) below the MAP;

C. "Subscribe and Save," "Auto-ship and Save," "Repeat Delivery," or other subscription or auto-replenishment loyalty discount programs which result in a discount below MAP, provided that such programs do not advertise a discount of more than ten percent (10%) below the MAP for the first purchase in the program, and no more than ten percent (10%) below the MAP for remaining purchases in the program; or

D. Representations that a customer may "call for price," "text for price," or "email for price," as long as no price is listed and no automated call, text message, or "bounce-back" email is used in response.

VI. MAP Holidays

From time to time, ARG may announce MAP holidays or promotions that are applicable to all resellers, during which periods a reseller that advertises a Covered Product in accordance with the terms of the authorized promotion will not be deemed to have violated the Policy. ARG will notify all resellers of any such authorized promotions, generally not fewer than thirty (30) days in advance.

VII. Noncompliance

ARG will take the following actions against any reseller that fails to comply with this Policy:

First Violation: ARG will notify the reseller in writing of such failure and will issue the reseller a written warning.

Second Violation: ARG will notify the reseller in writing of such failure and will immediately place the reseller's account on shipping hold for thirty (30) days. ARG will revoke its acceptance of any pending orders, cancel any pending shipments to the reseller, and not accept any new orders from reseller during this 30-day period.

Third Violation: ARG will terminate its business relationship with the reseller. ARG will revoke its acceptance of any pending orders and cancel any pending shipments to the reseller.

This Policy will be enforced by ARG in its sole discretion and without notice. Sellers have no right to enforce the Policy.

VIII. Policy Administration

ARG may update, revise, suspend, terminate, reinstitute, or modify this Policy at any time in its sole discretion. Any such modifications will be made available to all authorized resellers. If ARG changes the MAP on any Covered Product, it will provide at least 14 days' notice to resellers before the changes are effective.

No ARG employee or agent is authorized to modify, interpret, or grant any exceptions to this Policy; solicit or obtain the agreement of any person or entity to comply with this Policy; or otherwise discuss any aspect of this Policy with any reseller, including any reseller's compliance with the terms.

Any questions about this Policy should be submitted in writing and directed to ARG's MAP Policy Administrator at MAP@allergyresearchgroup.com. ARG will not accept any other form of communication from resellers regarding the Policy.